COMMERCIAL AGREEMENT - RECORD 007

Helioscope Robotics, Inc. - diligence file reference COMMERCIAL_CONTRACTS-007

1. Recitals and defined terms

This Master Robotics-as-a-Service Agreement is made between Helioscope Robotics, Inc. as Provider and Granite Peak Distribution LLC as Customer, a grocery distribution business organised in Colorado, contracting through Granite Peak Distribution LLC. Granite Peak and the Provider have agreed that terms defined in the recitals and in Schedule 3 carry the same meaning throughout, and that a defined term used in an Order has the meaning given here unless the Order expressly varies it.

Neither Granite Peak nor the Provider may treat Article 20 (Notices) as permitting either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. Deliberately so: an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Colorado is where Granite Peak runs grocery distribution operations across 7 sites, and the Master Robotics-as-a-Service Agreement follows that footprint. Administration of this obligation for Granite Peak sits with the account team rather than with central contracts, and Article 18 (Assignment) is where it is evidenced.

Article 16 (Term and Termination) of the Master Robotics-as-a-Service Agreement is to be construed so that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. In effect, performance is measured against the exhibit and not against any statement made in the parties' correspondence. In grocery distribution the burden of this sits with operations, and Granite Peak discharges it across 7 sites under the Master Robotics-as-a-Service Agreement. Granite Peak has taken the point up once since signature; the correspondence is filed against Article 17 (Transition Assistance) and did not result in an amendment.

Under Article 9 (Customer Obligations) of the Master Robotics-as-a-Service Agreement, title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. As a matter of construction, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. This bites at Granite Peak's 7 sites, since a grocery distribution operator administers the Master Robotics-as-a-Service Agreement where the units work. Notices under Article 14 (Indemnities) go to the contracting entity named in the recital and not to any Granite Peak affiliate that may operate a site.

As between Granite Peak and the Provider, either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. Tighter here than standard: time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. 7 sites in Colorado means Granite Peak applies the Master Robotics-as-a-Service Agreement through its regional operations team rather than through head office. Nothing in the Granite Peak negotiation history qualifies Article 16 (Term and Termination), and a reviewer should not read the pre-signature drafts as doing so.

Granite Peak RaaS agreement - Schedule 3 - Deployment Milestones and Payment Triggers

Granite Peak milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
GRA-M001	steady-state handover	2025-10	25	network provisioning	$45,058	no payment attached
GRA-M002	pilot acceptance	2026-11	3	labour agreement	$140,065	no payment attached
GRA-M003	pilot acceptance	2024-05	29	facility readiness	$250,017	invoiceable on certification
GRA-M004	warranty commencement	2026-08	24	network provisioning	$46,936	invoiceable on acceptance
GRA-M005	site survey complete	2026-03	6	facility readiness	$141,752	invoiceable on certification
GRA-M006	site survey complete	2026-12	26	labour agreement	$218,163	no payment attached
GRA-M007	network readiness certified	2025-11	30	no delay	$221,066	invoiceable on certification
GRA-M008	units delivered	2025-04	14	facility readiness	$205,388	invoiceable on acceptance

Granite Peak milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
GRA-M009	pilot acceptance	2024-05	5	no delay	$149,320	invoiceable on certification
GRA-M010	steady-state handover	2024-12	13	Customer IT dependency	$204,402	no payment attached
GRA-M011	integration test passed	2026-06	2	no delay	$216,181	invoiceable on acceptance
GRA-M012	pilot acceptance	2026-08	9	no delay	$141,640	invoiceable on acceptance
GRA-M013	units delivered	2024-04	on plan	seasonal freeze	$29,188	no payment attached
GRA-M014	steady-state handover	2026-04	1	no delay	$159,583	invoiceable on acceptance
GRA-M015	site survey complete	2025-01	5	no delay	$29,071	invoiceable on acceptance
GRA-M016	units delivered	2025-05	33	seasonal freeze	$199,847	invoiceable on acceptance
GRA-M017	integration test passed	2024-09	30	Customer IT dependency	$196,000	no payment attached
GRA-M018	units delivered	2024-02	4	no delay	$168,015	invoiceable on acceptance
GRA-M019	network readiness certified	2026-06	5	seasonal freeze	$179,579	no payment attached
GRA-M020	pilot acceptance	2024-04	11	no delay	$154,562	no payment attached
GRA-M021	steady-state handover	2025-04	21	Customer IT dependency	$114,719	invoiceable on acceptance
GRA-M022	warranty commencement	2025-07	17	seasonal freeze	$178,696	invoiceable on acceptance
GRA-M023	warranty commencement	2026-07	5	labour agreement	$75,314	invoiceable on acceptance
GRA-M024	pilot acceptance	2024-09	11	network provisioning	$220,813	no payment attached
GRA-M025	steady-state handover	2024-04	24	facility readiness	$31,108	invoiceable on acceptance
GRA-M026	pilot acceptance	2026-04	on plan	Customer IT dependency	$56,241	no payment attached
GRA-M027	pilot acceptance	2025-03	11	labour agreement	$80,123	no payment attached
GRA-M028	integration test passed	2024-09	31	network provisioning	$124,381	no payment attached
GRA-M029	network readiness certified	2024-12	15	network provisioning	$227,401	invoiceable on acceptance
GRA-M030	steady-state handover	2025-05	29	Customer IT dependency	$154,407	invoiceable on certification
GRA-M031	steady-state handover	2025-03	16	no delay	$195,164	invoiceable on certification
GRA-M032	network readiness certified	2026-06	14	no delay	$20,587	invoiceable on acceptance
GRA-M033	site survey complete	2025-05	16	facility readiness	$35,143	invoiceable on certification
GRA-M034	warranty commencement	2025-02	13	no delay	$237,249	invoiceable on acceptance
GRA-M035	steady-state handover	2026-11	31	facility readiness	$122,840	invoiceable on acceptance
GRA-M036	network readiness certified	2024-10	28	labour agreement	$165,712	invoiceable on certification
GRA-M037	pilot acceptance	2024-12	31	network provisioning	$238,695	no payment attached
GRA-M038	steady-state handover	2024-05	27	Customer IT dependency	$198,682	invoiceable on certification
GRA-M039	full acceptance	2025-11	11	seasonal freeze	$262,487	invoiceable on acceptance
GRA-M040	integration test passed	2026-09	17	facility readiness	$198,850	invoiceable on acceptance
GRA-M041	network readiness certified	2025-06	32	network provisioning	$185,084	invoiceable on acceptance
GRA-M042	network readiness certified	2026-04	23	Customer IT dependency	$27,146	invoiceable on acceptance

Granite Peak milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
GRA-M043	network readiness certified	2025-05	23	no delay	$83,149	no payment attached
GRA-M044	warranty commencement	2024-08	9	Customer IT dependency	$48,954	invoiceable on acceptance
GRA-M045	site survey complete	2024-09	3	Customer IT dependency	$178,860	invoiceable on acceptance
GRA-M046	warranty commencement	2025-01	10	no delay	$232,605	no payment attached
GRA-M047	integration test passed	2024-09	17	network provisioning	$47,131	invoiceable on acceptance
GRA-M048	units delivered	2024-04	18	facility readiness	$200,254	no payment attached
GRA-M049	pilot acceptance	2025-03	15	labour agreement	$85,654	invoiceable on acceptance
GRA-M050	site survey complete	2024-11	4	Customer IT dependency	$203,395	invoiceable on acceptance
GRA-M051	integration test passed	2025-03	20	labour agreement	$133,887	invoiceable on certification
GRA-M052	network readiness certified	2025-11	16	no delay	$238,385	invoiceable on acceptance
GRA-M053	full acceptance	2026-04	30	no delay	$254,861	no payment attached
GRA-M054	integration test passed	2025-10	8	no delay	$203,214	invoiceable on acceptance
GRA-M055	full acceptance	2026-09	31	labour agreement	$156,273	invoiceable on acceptance
GRA-M056	full acceptance	2026-01	4	no delay	$226,865	invoiceable on certification
GRA-M057	full acceptance	2026-08	27	facility readiness	$126,488	no payment attached
GRA-M058	warranty commencement	2026-12	26	Customer IT dependency	$243,644	invoiceable on acceptance
GRA-M059	site survey complete	2025-04	17	network provisioning	$153,808	no payment attached
GRA-M060	pilot acceptance	2025-08	15	labour agreement	$162,697	invoiceable on certification
GRA-M061	warranty commencement	2024-08	16	facility readiness	$77,496	invoiceable on certification
GRA-M062	pilot acceptance	2024-02	13	Customer IT dependency	$45,589	no payment attached
GRA-M063	site survey complete	2025-04	31	Customer IT dependency	$47,184	invoiceable on acceptance
GRA-M064	units delivered	2025-08	11	network provisioning	$204,247	no payment attached
GRA-M065	network readiness certified	2026-12	32	no delay	$153,145	invoiceable on acceptance
GRA-M066	full acceptance	2026-12	24	seasonal freeze	$162,407	invoiceable on acceptance
GRA-M067	steady-state handover	2024-11	12	network provisioning	$133,819	no payment attached
GRA-M068	steady-state handover	2025-05	11	Customer IT dependency	$254,888	no payment attached
GRA-M069	units delivered	2026-08	13	network provisioning	$173,459	invoiceable on certification
GRA-M070	site survey complete	2025-10	7	facility readiness	$228,589	invoiceable on acceptance
GRA-M071	full acceptance	2026-01	11	facility readiness	$21,917	invoiceable on certification
GRA-M072	site survey complete	2025-03	12	network provisioning	$25,122	invoiceable on certification
GRA-M073	warranty commencement	2026-02	15	network provisioning	$27,955	invoiceable on certification
GRA-M074	full acceptance	2026-02	4	Customer IT dependency	$180,683	invoiceable on acceptance
GRA-M075	network readiness certified	2026-09	1	no delay	$133,617	invoiceable on acceptance
GRA-M076	steady-state handover	2026-02	16	network provisioning	$97,985	no payment attached

Granite Peak milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
GRA-M077	network readiness certified	2026-01	22	Customer IT dependency	$142,847	no payment attached
GRA-M078	steady-state handover	2026-02	29	network provisioning	$222,920	no payment attached
GRA-M079	pilot acceptance	2024-06	19	labour agreement	$241,506	no payment attached
GRA-M080	integration test passed	2026-12	5	no delay	$62,508	invoiceable on acceptance
GRA-M081	steady-state handover	2025-08	15	Customer IT dependency	$78,495	invoiceable on acceptance
GRA-M082	site survey complete	2026-07	25	facility readiness	$29,267	invoiceable on certification
GRA-M083	integration test passed	2025-01	18	seasonal freeze	$227,993	invoiceable on certification
GRA-M084	pilot acceptance	2025-01	23	facility readiness	$192,969	invoiceable on acceptance
GRA-M085	full acceptance	2026-06	27	Customer IT dependency	$271,310	no payment attached
GRA-M086	warranty commencement	2026-04	9	facility readiness	$169,826	invoiceable on certification

2. Scope of supply and orders

Granite Peak bears the risk that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. In substance, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Site count matters here: Granite Peak has 7 sites, and the Master Robotics-as-a-Service Agreement treats each as a separate delivery point. The obligation as it applies to Granite Peak was tightened at signature, and Article 17 (Transition Assistance) carries the negotiated wording rather than the standard wording.

Granite Peak Distribution LLC undertakes that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. Intended effect: time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Because Granite Peak is a Colorado grocery distribution business with 7 sites, the Master Robotics-as-a-Service Agreement devolves this to the site manager. Nothing in the Granite Peak negotiation history qualifies Article 11 (Data and Telemetry), and a reviewer should not read the pre-signature drafts as doing so.

On the terms of Schedule 3, either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. Operationally, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Running 7 sites in grocery distribution, Granite Peak takes this obligation at site level rather than centrally under the Master Robotics-as-a-Service Agreement. Nothing in the Granite Peak negotiation history qualifies Article 9 (Customer Obligations), and a reviewer should not read the pre-signature drafts as doing so.

Granite Peak pays the fees under Schedule 3 in consideration of the Provider's undertaking that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. As a matter of construction, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. The Master Robotics-as-a-Service Agreement reaches each of Granite Peak's 7 sites separately, which is how a grocery distribution operator in Colorado administers it. The Granite Peak file records the position as at the last amendment, and Article 18 (Assignment) is the reference a reviewer should cite when raising it.

3. Delivery, title and risk

Granite Peak Distribution LLC undertakes that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. As a matter of construction, performance is measured against the exhibit and not against any statement made in the parties' correspondence. In grocery distribution the burden of this sits with operations, and Granite Peak discharges it across 7 sites under the Master

Robotics-as-a-Service Agreement. The Granite Peak file records the position as at the last amendment, and Article 18 (Assignment) is the reference a reviewer should cite when raising it.

For the purposes of the Master Robotics-as-a-Service Agreement, the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. In effect, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Granite Peak treats the obligation as a site-level matter across its 7 sites in Colorado, consistent with the Master Robotics-as-a-Service Agreement. Granite Peak has taken the point up once since signature; the correspondence is filed against Article 20 (Notices) and did not result in an amendment.

Article 17 (Transition Assistance) provides that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. Deliberately so: an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. 7 sites in Colorado means Granite Peak applies the Master Robotics-as-a-Service Agreement through its regional operations team rather than through head office. Administration of this obligation for Granite Peak sits with the account team rather than with central contracts, and Article 8 (Acceptance) is where it is evidenced.

Granite Peak and the Provider agree that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. On the wording, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. This bites at Granite Peak's 7 sites, since a grocery distribution operator administers the Master Robotics-as-a-Service Agreement where the units work. The Granite Peak relationship is managed against Article 12 (Intellectual Property) at each quarterly review, and any variance is minuted there rather than in the Order.

Granite Peak RaaS agreement - Exhibit C - Service Levels and Credit Ladder

Granite Peak service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
GRA-L001	availability	90.2%	1% of monthly fee	25% of monthly fee	excluding scheduled maintenance	credit then termination right
GRA-L002	resolution time	97.9%	2% of monthly fee	16% of monthly fee	excluding scheduled maintenance	credit then termination right
GRA-L003	response time	97.2%	6% of monthly fee	25% of monthly fee	excluding scheduled maintenance	credit only
GRA-L004	throughput	96.5%	11% of monthly fee	14% of monthly fee	excluding Customer-caused outage	credit only
GRA-L005	response time	96.5%	1% of monthly fee	11% of monthly fee	no exclusion	credit only
GRA-L006	resolution time	95.9%	7% of monthly fee	13% of monthly fee	excluding force majeure	credit then termination right
GRA-L007	throughput	96.4%	5% of monthly fee	27% of monthly fee	no exclusion	credit only
GRA-L008	availability	93.7%	10% of monthly fee	7% of monthly fee	excluding scheduled maintenance	credit only
GRA-L009	throughput	92.8%	2% of monthly fee	25% of monthly fee	excluding scheduled maintenance	credit then termination right
GRA-L010	availability	92.6%	5% of monthly fee	12% of monthly fee	no exclusion	credit then termination right
GRA-L011	response time	96.1%	4% of monthly fee	28% of monthly fee	excluding scheduled maintenance	credit then termination right
GRA-L012	availability	98.5%	2% of monthly fee	25% of monthly fee	excluding scheduled maintenance	credit then termination right
GRA-L013	throughput	92.9%	11% of monthly fee	6% of monthly fee	excluding Customer-caused outage	credit then termination right
GRA-L014	response time	97.7%	10% of monthly	30% of monthly	excluding	credit only

Granite Peak service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
			fee	fee	Customer-caused outage	
GRA-L015	throughput	94.5%	5% of monthly fee	17% of monthly fee	excluding scheduled maintenance	credit only
GRA-L016	response time	96.2%	10% of monthly fee	18% of monthly fee	no exclusion	credit only
GRA-L017	throughput	96.4%	12% of monthly fee	29% of monthly fee	no exclusion	credit then termination right
GRA-L018	resolution time	92.8%	2% of monthly fee	18% of monthly fee	no exclusion	credit only
GRA-L019	resolution time	93.9%	3% of monthly fee	10% of monthly fee	excluding force majeure	credit only
GRA-L020	throughput	92.4%	4% of monthly fee	5% of monthly fee	excluding force majeure	credit only
GRA-L021	response time	98.1%	1% of monthly fee	12% of monthly fee	excluding Customer-caused outage	credit only
GRA-L022	response time	96.2%	8% of monthly fee	8% of monthly fee	excluding Customer-caused outage	credit then termination right
GRA-L023	response time	93.2%	5% of monthly fee	16% of monthly fee	excluding scheduled maintenance	credit then termination right
GRA-L024	resolution time	91.4%	4% of monthly fee	28% of monthly fee	excluding Customer-caused outage	credit then termination right
GRA-L025	response time	93.5%	6% of monthly fee	11% of monthly fee	excluding scheduled maintenance	credit only
GRA-L026	response time	93.1%	6% of monthly fee	6% of monthly fee	excluding scheduled maintenance	credit then termination right
GRA-L027	availability	92.0%	1% of monthly fee	12% of monthly fee	excluding scheduled maintenance	credit then termination right
GRA-L028	response time	95.8%	2% of monthly fee	8% of monthly fee	no exclusion	credit then termination right
GRA-L029	response time	93.6%	7% of monthly fee	13% of monthly fee	excluding scheduled maintenance	credit then termination right
GRA-L030	response time	96.8%	2% of monthly fee	5% of monthly fee	excluding scheduled maintenance	credit then termination right
GRA-L031	throughput	90.8%	11% of monthly fee	27% of monthly fee	no exclusion	credit only
GRA-L032	availability	95.7%	1% of monthly fee	22% of monthly fee	excluding scheduled maintenance	credit only
GRA-L033	response time	92.3%	4% of monthly fee	24% of monthly fee	excluding force majeure	credit only
GRA-L034	response time	90.2%	6% of monthly fee	28% of monthly fee	excluding Customer-caused outage	credit only
GRA-L035	availability	92.9%	10% of monthly fee	28% of monthly fee	excluding scheduled maintenance	credit then termination right
GRA-L036	throughput	95.2%	10% of monthly fee	8% of monthly fee	excluding Customer-caused outage	credit only
GRA-L037	resolution time	98.1%	4% of monthly fee	12% of monthly fee	excluding Customer-caused outage	credit then termination right
GRA-L038	throughput	94.2%	3% of monthly fee	11% of monthly fee	excluding Customer-caused outage	credit only
GRA-L039	resolution time	92.2%	5% of monthly fee	9% of monthly fee	no exclusion	credit then termination right
GRA-L040	availability	93.6%	4% of monthly	26% of monthly	excluding	credit only

Granite Peak service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
			fee	fee	Customer-caused outage	
GRA-L041	resolution time	92.6%	10% of monthly fee	30% of monthly fee	excluding scheduled maintenance	credit only
GRA-L042	throughput	94.6%	9% of monthly fee	6% of monthly fee	excluding scheduled maintenance	credit then termination right
GRA-L043	availability	92.7%	5% of monthly fee	24% of monthly fee	excluding Customer-caused outage	credit only
GRA-L044	resolution time	94.3%	5% of monthly fee	28% of monthly fee	no exclusion	credit then termination right
GRA-L045	availability	93.8%	3% of monthly fee	18% of monthly fee	no exclusion	credit then termination right
GRA-L046	resolution time	95.5%	11% of monthly fee	9% of monthly fee	no exclusion	credit then termination right
GRA-L047	resolution time	98.0%	4% of monthly fee	14% of monthly fee	excluding scheduled maintenance	credit then termination right
GRA-L048	response time	98.5%	3% of monthly fee	13% of monthly fee	excluding Customer-caused outage	credit then termination right
GRA-L049	response time	95.6%	9% of monthly fee	18% of monthly fee	excluding force majeure	credit then termination right
GRA-L050	availability	96.4%	4% of monthly fee	30% of monthly fee	no exclusion	credit only
GRA-L051	response time	96.9%	5% of monthly fee	10% of monthly fee	excluding force majeure	credit only
GRA-L052	response time	93.7%	2% of monthly fee	9% of monthly fee	excluding scheduled maintenance	credit then termination right
GRA-L053	resolution time	91.1%	7% of monthly fee	11% of monthly fee	no exclusion	credit only
GRA-L054	availability	97.3%	8% of monthly fee	17% of monthly fee	excluding force majeure	credit then termination right
GRA-L055	response time	98.9%	1% of monthly fee	11% of monthly fee	no exclusion	credit only
GRA-L056	resolution time	94.4%	10% of monthly fee	20% of monthly fee	excluding Customer-caused outage	credit only
GRA-L057	throughput	97.9%	4% of monthly fee	25% of monthly fee	no exclusion	credit only
GRA-L058	resolution time	92.7%	4% of monthly fee	7% of monthly fee	excluding Customer-caused outage	credit only
GRA-L059	resolution time	98.5%	11% of monthly fee	13% of monthly fee	excluding scheduled maintenance	credit then termination right
GRA-L060	availability	97.5%	12% of monthly fee	17% of monthly fee	excluding Customer-caused outage	credit then termination right
GRA-L061	resolution time	97.0%	11% of monthly fee	30% of monthly fee	excluding scheduled maintenance	credit only
GRA-L062	throughput	90.1%	7% of monthly fee	21% of monthly fee	excluding Customer-caused outage	credit only
GRA-L063	response time	94.4%	11% of monthly fee	12% of monthly fee	excluding Customer-caused outage	credit then termination right
GRA-L064	response time	91.2%	4% of monthly fee	26% of monthly fee	excluding Customer-caused outage	credit only
GRA-L065	availability	94.2%	6% of monthly fee	24% of monthly fee	no exclusion	credit only
GRA-L066	resolution time	93.2%	7% of monthly fee	16% of monthly fee	excluding force majeure	credit then termination right
GRA-L067	resolution time	95.5%	8% of monthly	21% of monthly	excluding	credit then

Granite Peak service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
			fee	fee	scheduled maintenance	termination right
GRA-L068	availability	90.1%	1% of monthly fee	8% of monthly fee	excluding Customer-caused outage	credit then termination right
GRA-L069	availability	92.9%	10% of monthly fee	27% of monthly fee	no exclusion	credit only
GRA-L070	throughput	91.7%	9% of monthly fee	17% of monthly fee	excluding scheduled maintenance	credit then termination right
GRA-L071	throughput	95.8%	4% of monthly fee	15% of monthly fee	excluding force majeure	credit then termination right
GRA-L072	throughput	94.3%	6% of monthly fee	20% of monthly fee	no exclusion	credit then termination right
GRA-L073	resolution time	95.9%	10% of monthly fee	22% of monthly fee	excluding scheduled maintenance	credit only
GRA-L074	throughput	93.2%	2% of monthly fee	26% of monthly fee	excluding Customer-caused outage	credit only
GRA-L075	response time	92.1%	2% of monthly fee	26% of monthly fee	no exclusion	credit then termination right
GRA-L076	availability	93.4%	4% of monthly fee	8% of monthly fee	excluding scheduled maintenance	credit then termination right
GRA-L077	response time	92.0%	2% of monthly fee	26% of monthly fee	no exclusion	credit only
GRA-L078	response time	98.8%	7% of monthly fee	21% of monthly fee	excluding Customer-caused outage	credit then termination right
GRA-L079	availability	94.1%	3% of monthly fee	10% of monthly fee	no exclusion	credit then termination right
GRA-L080	throughput	91.8%	5% of monthly fee	29% of monthly fee	no exclusion	credit only

4. Fees, invoicing and escalation

Granite Peak and the Provider agree that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. Tighter here than standard: where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. The Master Robotics-as-a-Service Agreement reaches each of Granite Peak's 7 sites separately, which is how a grocery distribution operator in Colorado administers it. The Granite Peak relationship is managed against Article 4 (Orders and Quantities) at each quarterly review, and any variance is minuted there rather than in the Order.

Granite Peak acknowledges that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. By design, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Operating 7 sites, Granite Peak applies the Master Robotics-as-a-Service Agreement at the point of delivery, as grocery distribution practice requires. The Granite Peak relationship is managed against Article 19 (Confidentiality) at each quarterly review, and any variance is minuted there rather than in the Order.

The Provider has undertaken to Granite Peak that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. Deliberately so: the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Granite Peak treats the obligation as a site-level matter across its 7 sites in Colorado, consistent with the Master Robotics-as-a-Service Agreement. Nothing in the Granite Peak negotiation history qualifies Article 2 (Definitions), and a reviewer should not read the pre-signature drafts as doing so.

Granite Peak has agreed, and the Provider has accepted, that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. Intended effect: an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised

officer. In grocery distribution the burden of this sits with operations, and Granite Peak discharges it across 7 sites under the Master Robotics-as-a-Service Agreement. Granite Peak has taken the point up once since signature; the correspondence is filed against Article 3 (Scope of Supply) and did not result in an amendment.

5. Service levels and credits

Read with Exhibit B, the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. Practically, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. 7 sites in Colorado means Granite Peak applies the Master Robotics-as-a-Service Agreement through its regional operations team rather than through head office. Nothing in the Granite Peak negotiation history qualifies Article 21 (Governing Law and Disputes), and a reviewer should not read the pre-signature drafts as doing so.

Granite Peak and the Provider agree that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. In terms of consequence, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Site count matters here: Granite Peak has 7 sites, and the Master Robotics-as-a-Service Agreement treats each as a separate delivery point. Because Granite Peak operates in grocery distribution, the practical burden of this clause falls on its Colorado operation, and Article 21 (Governing Law and Disputes) governs how it is measured.

Granite Peak and the Provider agree that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. Deliberately so: an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Running 7 sites in grocery distribution, Granite Peak takes this obligation at site level rather than centrally under the Master Robotics-as-a-Service Agreement. Notices under Article 10 (Change Control) go to the contracting entity named in the recital and not to any Granite Peak affiliate that may operate a site.

The parties have recorded in Schedule 3 that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. By design, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Operating 7 sites, Granite Peak applies the Master Robotics-as-a-Service Agreement at the point of delivery, as grocery distribution practice requires. The Granite Peak file records the position as at the last amendment, and Article 11 (Data and Telemetry) is the reference a reviewer should cite when raising it.

6. Acceptance and change control

Granite Peak is not obliged, under Schedule 2, to accept that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. On the mechanics, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Site count matters here: Granite Peak has 7 sites, and the Master Robotics-as-a-Service Agreement treats each as a separate delivery point. Administration of this obligation for Granite Peak sits with the account team rather than with central contracts, and Article 3 (Scope of Supply) is where it is evidenced.

Article 21 (Governing Law and Disputes) of the Master Robotics-as-a-Service Agreement is to be construed so that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. Operationally, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. In grocery distribution the burden of this sits with operations, and Granite Peak discharges it across 7 sites under the Master Robotics-as-a-Service Agreement. Granite Peak has taken the point up once since signature; the correspondence is filed against Article 17 (Transition Assistance) and did not result in an amendment.

Subject to Article 6 (Fees and Payment), each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. On this point, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Because Granite Peak is a Colorado grocery distribution business with 7 sites, the Master Robotics-as-a-Service

Agreement devolves this to the site manager. Where Granite Peak has raised a query the Provider has answered by reference to Article 2 (Definitions), and the exchange is on the contract file.

Except as Article 6 (Fees and Payment) permits, acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. In substance, performance is measured against the exhibit and not against any statement made in the parties' correspondence. This bites at Granite Peak's 7 sites, since a grocery distribution operator administers the Master Robotics-as-a-Service Agreement where the units work. The Granite Peak file records the position as at the last amendment, and Article 4 (Orders and Quantities) is the reference a reviewer should cite when raising it.

Granite Peak RaaS agreement - Exhibit D - Component Prices, Lead Times and Sourcing

Granite Peak price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
GRA-P0001	part 4481-N	castor assembly	$1,622	25	300	single source	no EOL commitment
GRA-P0002	part 2675-B	optical sensor	$2,164	25	450	qualification in progress	last-time-buy notice 12 months
GRA-P0003	part 5683-U	optical sensor	$1,976	23	400	single source	no EOL commitment
GRA-P0004	part 8077-C	controller board	$1,294	17	150	qualification in progress	no EOL commitment
GRA-P0005	part 6413-E	castor assembly	$1,969	21	150	qualification in progress	last-time-buy notice 12 months
GRA-P0006	part 6962-K	gearbox	$693	10	150	dual sourced	no EOL commitment
GRA-P0007	part 8036-B	castor assembly	$1,063	19	550	dual sourced	no EOL commitment
GRA-P0008	part 7399-B	optical sensor	$1,346	13	250	qualification in progress	last-time-buy notice 12 months
GRA-P0009	part 4540-Z	gearbox	$582	17	350	dual sourced	no EOL commitment
GRA-P0010	part 8525-J	castor assembly	$1,565	19	250	single source	no EOL commitment
GRA-P0011	part 4490-E	optical sensor	$258	15	500	dual sourced	no EOL commitment
GRA-P0012	part 1044-T	harness	$742	17	150	single source	EOL notice 6 months
GRA-P0013	part 6818-T	gearbox	$347	10	400	single source	no EOL commitment
GRA-P0014	part 2336-C	controller board	$2,400	20	350	single source	last-time-buy notice 12 months
GRA-P0015	part 5493-L	harness	$1,314	24	300	qualification in progress	last-time-buy notice 12 months
GRA-P0016	part 8942-F	harness	$724	21	400	single source	EOL notice 6 months
GRA-P0017	part 6628-H	castor assembly	$856	14	350	dual sourced	last-time-buy notice 12 months
GRA-P0018	part 8986-T	castor assembly	$1,320	14	600	dual sourced	EOL notice 6 months
GRA-P0019	part 8749-H	controller board	$2,078	14	150	dual sourced	last-time-buy notice 12 months
GRA-P0020	part 6201-B	drive unit	$1,166	18	550	single source	last-time-buy notice 12 months
GRA-P0021	part 1983-D	gearbox	$1,872	18	350	qualification in progress	last-time-buy notice 12 months
GRA-P0022	part 7187-Q	gearbox	$1,009	14	50	dual sourced	EOL notice 6 months
GRA-P0023	part 3434-G	optical sensor	$1,981	25	500	single source	EOL notice 6 months

Granite Peak price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
GRA-P0024	part 3800-T	gearbox	$1,829	21	550	single source	last-time-buy notice 12 months
GRA-P0025	part 4102-E	controller board	$1,015	18	600	single source	no EOL commitment
GRA-P0026	part 9887-P	battery module	$807	8	200	single source	no EOL commitment
GRA-P0027	part 4965-G	battery module	$2,270	8	500	qualification in progress	no EOL commitment
GRA-P0028	part 7142-I	optical sensor	$2,303	8	300	single source	EOL notice 6 months
GRA-P0029	part 6076-U	battery module	$2,221	21	350	qualification in progress	no EOL commitment
GRA-P0030	part 8904-V	gearbox	$1,975	24	500	qualification in progress	last-time-buy notice 12 months
GRA-P0031	part 1195-U	optical sensor	$592	15	100	dual sourced	EOL notice 6 months
GRA-P0032	part 9940-F	optical sensor	$717	16	300	single source	no EOL commitment
GRA-P0033	part 4956-Z	harness	$988	25	500	single source	last-time-buy notice 12 months
GRA-P0034	part 8000-D	harness	$1,837	17	50	dual sourced	EOL notice 6 months
GRA-P0035	part 8485-J	gearbox	$321	15	150	qualification in progress	EOL notice 6 months
GRA-P0036	part 7724-K	castor assembly	$206	20	600	qualification in progress	last-time-buy notice 12 months
GRA-P0037	part 6437-T	battery module	$1,921	21	300	qualification in progress	no EOL commitment
GRA-P0038	part 7184-T	controller board	$1,735	5	550	dual sourced	no EOL commitment
GRA-P0039	part 7611-A	castor assembly	$743	19	500	qualification in progress	no EOL commitment
GRA-P0040	part 1159-W	encoder	$1,917	21	550	dual sourced	no EOL commitment
GRA-P0041	part 4245-L	harness	$372	20	150	qualification in progress	EOL notice 6 months
GRA-P0042	part 1189-C	battery module	$1,854	8	200	single source	EOL notice 6 months
GRA-P0043	part 7451-I	controller board	$1,179	21	100	single source	last-time-buy notice 12 months
GRA-P0044	part 9794-F	castor assembly	$272	8	100	dual sourced	EOL notice 6 months
GRA-P0045	part 1274-A	controller board	$1,681	21	200	dual sourced	no EOL commitment
GRA-P0046	part 1015-F	drive unit	$2,094	7	500	single source	last-time-buy notice 12 months

6. Acceptance and change control - part 2 of 2

Following on directly, these further rows of the 6. Acceptance and change control belong to the same schedule and share its numbering. No row is omitted at the join.

Everything stated about how the 6. Acceptance and change control was assembled continues to hold, and the break carries no substantive meaning. The parts are to be read together.

Granite Peak RaaS agreement - Exhibit D - Component Prices, Lead Times and Sourcing (continued, part 2 of 2)

Granite Peak price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
GRA-P0047	part 6770-A	gearbox	$323	22	350	dual sourced	last-time-buy notice 12 months
GRA-P0048	part 5672-I	optical sensor	$1,049	19	200	qualification in	EOL notice 6

Granite Peak price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
						progress	months
GRA-P0049	part 5196-W	gearbox	$1,032	17	150	qualification in progress	last-time-buy notice 12 months
GRA-P0050	part 6172-Z	optical sensor	$1,645	14	200	qualification in progress	last-time-buy notice 12 months
GRA-P0051	part 5942-J	harness	$1,941	14	550	single source	last-time-buy notice 12 months
GRA-P0052	part 8792-F	encoder	$511	20	50	single source	no EOL commitment
GRA-P0053	part 4939-H	battery module	$1,530	24	100	dual sourced	no EOL commitment
GRA-P0054	part 1594-E	battery module	$2,356	20	450	qualification in progress	last-time-buy notice 12 months
GRA-P0055	part 2207-Y	optical sensor	$1,687	15	100	single source	EOL notice 6 months
GRA-P0056	part 6451-O	drive unit	$824	12	450	qualification in progress	last-time-buy notice 12 months
GRA-P0057	part 6605-X	optical sensor	$512	12	500	single source	last-time-buy notice 12 months
GRA-P0058	part 1372-U	encoder	$1,373	9	200	qualification in progress	last-time-buy notice 12 months
GRA-P0059	part 2587-Z	drive unit	$805	15	550	dual sourced	last-time-buy notice 12 months
GRA-P0060	part 4972-X	battery module	$498	22	250	qualification in progress	no EOL commitment
GRA-P0061	part 6746-U	optical sensor	$1,265	4	150	single source	last-time-buy notice 12 months
GRA-P0062	part 4510-V	harness	$1,491	19	550	single source	EOL notice 6 months
GRA-P0063	part 4789-Z	harness	$1,440	5	50	single source	last-time-buy notice 12 months
GRA-P0064	part 5664-T	castor assembly	$2,396	9	600	dual sourced	last-time-buy notice 12 months
GRA-P0065	part 1221-V	harness	$2,168	17	400	qualification in progress	no EOL commitment
GRA-P0066	part 4102-J	battery module	$1,829	24	200	dual sourced	EOL notice 6 months
GRA-P0067	part 7596-H	gearbox	$2,126	9	600	qualification in progress	no EOL commitment
GRA-P0068	part 8339-R	drive unit	$164	9	550	qualification in progress	last-time-buy notice 12 months
GRA-P0069	part 4717-Z	gearbox	$548	23	50	qualification in progress	last-time-buy notice 12 months
GRA-P0070	part 7484-E	controller board	$171	8	100	dual sourced	last-time-buy notice 12 months
GRA-P0071	part 7603-B	harness	$1,257	25	600	dual sourced	EOL notice 6 months
GRA-P0072	part 1556-C	gearbox	$943	24	100	single source	no EOL commitment
GRA-P0073	part 8313-Q	gearbox	$1,159	18	450	qualification in progress	EOL notice 6 months
GRA-P0074	part 5376-J	battery module	$1,091	4	550	qualification in progress	last-time-buy notice 12 months
GRA-P0075	part 7581-H	battery module	$1,362	24	50	single source	EOL notice 6

Granite Peak price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
							months
GRA-P0076	part 7058-X	controller board	$1,058	18	550	single source	EOL notice 6 months
GRA-P0077	part 2048-T	encoder	$728	10	300	qualification in progress	EOL notice 6 months
GRA-P0078	part 4047-J	battery module	$2,141	11	200	single source	EOL notice 6 months
GRA-P0079	part 7974-U	battery module	$1,488	7	600	single source	EOL notice 6 months
GRA-P0080	part 2490-L	gearbox	$1,574	20	400	single source	no EOL commitment
GRA-P0081	part 2341-Y	gearbox	$2,229	21	200	qualification in progress	last-time-buy notice 12 months
GRA-P0082	part 5506-Z	encoder	$1,531	11	150	qualification in progress	EOL notice 6 months
GRA-P0083	part 1961-L	encoder	$2,130	20	550	single source	last-time-buy notice 12 months
GRA-P0084	part 2270-G	optical sensor	$664	18	300	dual sourced	no EOL commitment
GRA-P0085	part 5229-Z	gearbox	$1,729	10	500	dual sourced	last-time-buy notice 12 months
GRA-P0086	part 1034-W	castor assembly	$2,315	19	300	single source	no EOL commitment
GRA-P0087	part 9624-M	gearbox	$1,457	22	600	dual sourced	EOL notice 6 months
GRA-P0088	part 1558-Q	drive unit	$2,426	20	550	dual sourced	last-time-buy notice 12 months
GRA-P0089	part 3124-C	encoder	$1,887	8	300	single source	no EOL commitment
GRA-P0090	part 3213-S	harness	$1,398	10	500	single source	last-time-buy notice 12 months
GRA-P0091	part 7155-L	drive unit	$1,413	11	450	dual sourced	EOL notice 6 months
GRA-P0092	part 5855-I	controller board	$2,291	14	400	qualification in progress	no EOL commitment

7. Data, intellectual property and licences

Granite Peak pays the fees under Exhibit D in consideration of the Provider's undertaking that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. As agreed, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Granite Peak runs 7 sites from Colorado in grocery distribution, so the Master Robotics-as-a-Service Agreement is administered locally and this clause is applied per site. For a customer of Granite Peak's size the clause is unremarkable, but Article 10 (Change Control) is drafted more tightly here than in the Provider's standard form.

Except as Article 3 (Scope of Supply) permits, the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. On any reading, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. In grocery distribution the burden of this sits with operations, and Granite Peak discharges it across 7 sites under the Master Robotics-as-a-Service Agreement. Administration of this obligation for Granite Peak sits with the account team rather than with central contracts, and Article 19 (Confidentiality) is where it is evidenced.

Granite Peak retains the right, notwithstanding Article 11 (Data and Telemetry), to require that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. On any reading, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Because Granite Peak is a Colorado grocery distribution business with 7 sites, the Master Robotics-as-a-Service Agreement devolves this to the site manager. The obligation as it applies to Granite Peak

was tightened at signature, and Article 4 (Orders and Quantities) carries the negotiated wording rather than the standard wording.

Save as Exhibit B otherwise provides, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. Practically, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Granite Peak runs 7 sites from Colorado in grocery distribution, so the Master Robotics-as-a-Service Agreement is administered locally and this clause is applied per site. Notices under Article 11 (Data and Telemetry) go to the contracting entity named in the recital and not to any Granite Peak affiliate that may operate a site.

8. Indemnities and limitation of liability

Granite Peak may require that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. On the mechanics, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. 7 sites in Colorado means Granite Peak applies the Master Robotics-as-a-Service Agreement through its regional operations team rather than through head office. The Granite Peak file records the position as at the last amendment, and Article 14 (Indemnities) is the reference a reviewer should cite when raising it.

For the purposes of the Master Robotics-as-a-Service Agreement, the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. In terms of consequence, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. In grocery distribution the burden of this sits with operations, and Granite Peak discharges it across 7 sites under the Master Robotics-as-a-Service Agreement. Nothing in the Granite Peak negotiation history qualifies Article 12 (Intellectual Property), and a reviewer should not read the pre-signature drafts as doing so.

Where Article 16 (Term and Termination) applies, personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. Operationally, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. The Master Robotics-as-a-Service Agreement reaches each of Granite Peak's 7 sites separately, which is how a grocery distribution operator in Colorado administers it. Nothing in the Granite Peak negotiation history qualifies Article 19 (Confidentiality), and a reviewer should not read the pre-signature drafts as doing so.

Granite Peak bears the risk that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. On the wording, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Granite Peak treats the obligation as a site-level matter across its 7 sites in Colorado, consistent with the Master Robotics-as-a-Service Agreement. Notices under Article 19 (Confidentiality) go to the contracting entity named in the recital and not to any Granite Peak affiliate that may operate a site.

Granite Peak RaaS agreement - Schedule 5 - Notices, Periods and Addressees

Granite Peak notice type	Subject	Period	Addressee	Method	Deemed given
GRA-N001	renewal election	85 days	Contracts Manager	email with acknowledgement	on receipt
GRA-N002	service credit claim	70 days	Chief Operating Officer	courier only	on receipt
GRA-N003	price adjustment	90 days	Chief Operating Officer	email with acknowledgement	on receipt
GRA-N004	non-renewal	20 days	Chief Operating Officer	courier and email	on despatch
GRA-N005	service credit claim	65 days	General Counsel	courier only	on despatch
GRA-N006	force majeure	20 days	Chief Operating Officer	courier only	on receipt
GRA-N007	price adjustment	55 days	Chief Operating Officer	portal notice	on the second business day after despatch
GRA-N008	assignment request	55 days	Contracts Manager	portal notice	on the second business day after

Granite Peak notice type	Subject	Period	Addressee	Method	Deemed given
					despatch
GRA-N009	breach	45 days	designated account executive	courier only	on receipt
GRA-N010	force majeure	80 days	General Counsel	email with acknowledgement	on receipt
GRA-N011	non-renewal	50 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
GRA-N012	termination for cause	20 days	Chief Operating Officer	courier only	on despatch
GRA-N013	non-renewal	85 days	Chief Operating Officer	courier only	on despatch
GRA-N014	force majeure	5 days	Contracts Manager	courier only	on the second business day after despatch
GRA-N015	assignment request	65 days	General Counsel	email with acknowledgement	on despatch
GRA-N016	price adjustment	55 days	General Counsel	courier only	on despatch
GRA-N017	non-renewal	20 days	Contracts Manager	courier only	on despatch
GRA-N018	price adjustment	50 days	Chief Operating Officer	email with acknowledgement	on the second business day after despatch
GRA-N019	price adjustment	80 days	Contracts Manager	courier only	on the second business day after despatch
GRA-N020	change of control	85 days	Contracts Manager	portal notice	on the second business day after despatch
GRA-N021	change of control	50 days	General Counsel	courier and email	on the second business day after despatch
GRA-N022	non-renewal	15 days	General Counsel	courier and email	on receipt
GRA-N023	price adjustment	60 days	General Counsel	email with acknowledgement	on the second business day after despatch
GRA-N024	non-renewal	25 days	General Counsel	courier only	on receipt
GRA-N025	termination for cause	90 days	designated account executive	courier and email	on despatch
GRA-N026	price adjustment	40 days	Contracts Manager	courier and email	on the second business day after despatch
GRA-N027	assignment request	25 days	Chief Operating Officer	email with acknowledgement	on the second business day after despatch
GRA-N028	breach	45 days	General Counsel	email with acknowledgement	on despatch
GRA-N029	assignment request	75 days	Contracts Manager	portal notice	on the second business day after despatch
GRA-N030	breach	50 days	Contracts Manager	courier only	on despatch
GRA-N031	force majeure	30 days	General Counsel	email with acknowledgement	on despatch
GRA-N032	price adjustment	80 days	Contracts Manager	courier and email	on despatch
GRA-N033	price adjustment	70 days	Contracts Manager	portal notice	on the second business day after despatch
GRA-N034	breach	5 days	designated account executive	portal notice	on despatch
GRA-N035	service credit claim	85 days	Contracts Manager	courier only	on the second business day after despatch
GRA-N036	change of control	10 days	Chief Operating Officer	email with acknowledgement	on the second business day after despatch
GRA-N037	renewal election	35 days	General Counsel	portal notice	on receipt
GRA-N038	termination for cause	60 days	Contracts Manager	courier and email	on receipt
GRA-N039	force majeure	35 days	General Counsel	courier and email	on despatch
GRA-N040	breach	30 days	General Counsel	courier only	on the second business day after

Granite Peak notice type	Subject	Period	Addressee	Method	Deemed given
					despatch
GRA-N041	price adjustment	75 days	designated account executive	email with acknowledgement	on the second business day after despatch
GRA-N042	service credit claim	80 days	Chief Operating Officer	email with acknowledgement	on the second business day after despatch
GRA-N043	non-renewal	50 days	designated account executive	email with acknowledgement	on the second business day after despatch
GRA-N044	renewal election	45 days	designated account executive	courier only	on despatch
GRA-N045	service credit claim	30 days	General Counsel	portal notice	on despatch
GRA-N046	termination for cause	40 days	Chief Operating Officer	portal notice	on despatch
GRA-N047	termination for cause	60 days	Chief Operating Officer	email with acknowledgement	on receipt
GRA-N048	price adjustment	85 days	Contracts Manager	courier and email	on receipt
GRA-N049	breach	40 days	designated account executive	portal notice	on despatch
GRA-N050	price adjustment	50 days	designated account executive	portal notice	on despatch
GRA-N051	change of control	5 days	Chief Operating Officer	portal notice	on the second business day after despatch
GRA-N052	price adjustment	25 days	General Counsel	email with acknowledgement	on the second business day after despatch
GRA-N053	price adjustment	55 days	Chief Operating Officer	courier only	on despatch
GRA-N054	breach	55 days	designated account executive	courier only	on receipt
GRA-N055	renewal election	20 days	Contracts Manager	courier and email	on receipt
GRA-N056	price adjustment	60 days	designated account executive	courier only	on the second business day after despatch
GRA-N057	service credit claim	35 days	designated account executive	courier only	on despatch
GRA-N058	service credit claim	85 days	designated account executive	courier and email	on receipt
GRA-N059	breach	20 days	Contracts Manager	portal notice	on the second business day after despatch
GRA-N060	breach	90 days	designated account executive	courier and email	on receipt
GRA-N061	assignment request	85 days	Chief Operating Officer	portal notice	on despatch
GRA-N062	change of control	80 days	Chief Operating Officer	courier and email	on the second business day after despatch
GRA-N063	renewal election	90 days	designated account executive	courier and email	on despatch
GRA-N064	renewal election	50 days	designated account executive	email with acknowledgement	on the second business day after despatch
GRA-N065	breach	85 days	Chief Operating Officer	portal notice	on the second business day after despatch
GRA-N066	change of control	30 days	Contracts Manager	courier and email	on despatch
GRA-N067	termination for cause	70 days	Contracts Manager	portal notice	on receipt
GRA-N068	assignment request	60 days	Chief Operating Officer	courier and email	on receipt
GRA-N069	termination for cause	80 days	Chief Operating Officer	email with acknowledgement	on receipt
GRA-N070	renewal election	80 days	General Counsel	courier and email	on receipt
GRA-N071	price adjustment	10 days	General Counsel	portal notice	on despatch
GRA-N072	change of control	15 days	General Counsel	courier and email	on the second business day after despatch

Granite Peak notice type	Subject	Period	Addressee	Method	Deemed given
GRA-N073	breach	20 days	General Counsel	email with acknowledgement	on the second business day after despatch
GRA-N074	termination for cause	60 days	General Counsel	portal notice	on the second business day after despatch
GRA-N075	force majeure	5 days	designated account executive	courier only	on despatch
GRA-N076	force majeure	35 days	Chief Operating Officer	email with acknowledgement	on receipt
GRA-N077	non-renewal	10 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
GRA-N078	assignment request	20 days	Chief Operating Officer	portal notice	on receipt

9. Term, termination and transition

Granite Peak Distribution LLC is entitled to require that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. In application, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Running 7 sites in grocery distribution, Granite Peak takes this obligation at site level rather than centrally under the Master Robotics-as-a-Service Agreement. The obligation as it applies to Granite Peak was tightened at signature, and Article 19 (Confidentiality) carries the negotiated wording rather than the standard wording.

Read with Exhibit D, the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. In substance, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Colorado is where Granite Peak runs grocery distribution operations across 7 sites, and the Master Robotics-as-a-Service Agreement follows that footprint. Administration of this obligation for Granite Peak sits with the account team rather than with central contracts, and Article 17 (Transition Assistance) is where it is evidenced.

The parties have recorded in Schedule 5 that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. On the wording, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. 7 sites in Colorado means Granite Peak applies the Master Robotics-as-a-Service Agreement through its regional operations team rather than through head office. Nothing in the Granite Peak negotiation history qualifies Article 15 (Limitation of Liability), and a reviewer should not read the pre-signature drafts as doing so.

Granite Peak is not obliged, under Schedule 2, to accept that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. As a matter of construction, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Granite Peak runs 7 sites from Colorado in grocery distribution, so the Master Robotics-as-a-Service Agreement is administered locally and this clause is applied per site. Where Granite Peak has raised a query the Provider has answered by reference to Article 12 (Intellectual Property), and the exchange is on the contract file.

10. Assignment, notices and general

Article 14.3 of this instrument records a departure from the Provider's standard position: the Provider's indemnity for bodily injury arising from a Safety Function fault is not subject to the limitation of liability in Article 15 and is uncapped. The provision was negotiated at signature and is not qualified elsewhere in the Master Robotics-as-a-Service Agreement; a reader reconciling this instrument against the Provider's standard terms should treat Article 14.3 as governing.

Neither Granite Peak nor the Provider may treat Article 18 (Assignment) as permitting the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. Practically, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different

breach of the same article. Operating 7 sites, Granite Peak applies the Master Robotics-as-a-Service Agreement at the point of delivery, as grocery distribution practice requires. The Granite Peak relationship is managed against Article 5 (Delivery and Title) at each quarterly review, and any variance is minuted there rather than in the Order.

Granite Peak acknowledges that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. As it bites, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Granite Peak treats the obligation as a site-level matter across its 7 sites in Colorado, consistent with the Master Robotics-as-a-Service Agreement. Nothing in the Granite Peak negotiation history qualifies Article 8 (Acceptance), and a reviewer should not read the pre-signature drafts as doing so.

Neither Granite Peak nor the Provider may treat Article 9 (Customer Obligations) as permitting personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. On this point, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. This bites at Granite Peak's 7 sites, since a grocery distribution operator administers the Master Robotics-as-a-Service Agreement where the units work. Where Granite Peak has raised a query the Provider has answered by reference to Article 19 (Confidentiality), and the exchange is on the contract file.

Granite Peak retains the right, notwithstanding Article 2 (Definitions), to require that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. As it bites, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Colorado is where Granite Peak runs grocery distribution operations across 7 sites, and the Master Robotics-as-a-Service Agreement follows that footprint. Because Granite Peak operates in grocery distribution, the practical burden of this clause falls on its Colorado operation, and Article 4 (Orders and Quantities) governs how it is measured.